

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

----- X

ELIZABETH ARRINGTON,

PLAINTIFF,

Index No. _____

-AGAINST-

SUMMONS

NEW YORK CITY, POLICE OFFICER ALEX
HOJNOWSKI AND POLICE OFFICER DAVID
HOVESTADT, individually, and in their capacity as
members of the New York City Police Department,

DEFENDANTS.

----- X

To the above named Defendants:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorneys a Verified Answer to the Verified Complaint in this action within twenty days after the service of this Summons, exclusive of the day of service, or within thirty days after service is complete if this Summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

The basis of venue designated above is that the cause of action arose in Queens County.

Dated: April 28, 2017

/s/

Malcolm Anderson

PetersonDelleCave LLP
Attorney for Plaintiff
233 Broadway, Suite 1800
New York, NY 10279
(212) 240-9075

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

----- x

ELIZABETH ARRINGTON,

PLAINTIFF,

Index No. _____

-AGAINST-

VERIFIED COMPLAINT

NEW YORK CITY, POLICE OFFICER ALEX
HOJNOWSKI AND POLICE OFFICER DAVID
HOVESTADT, individually, and in their capacity as
members of the New York City Police Department,

DEFENDANTS.

----- x

PRELIMINARY STATEMENT

1. This is a civil action in which Plaintiff Ms. Elizabeth Arrington (“Ms. Arrington”) seeks relief for the violation of her rights secured by 42 USC 1983, the Fourth and Fourteenth Amendments to the United States Constitution.
2. The claims arise from an incident on or about August 2, 2016, in which officers of the New York City Police Department (“NYPD”), acting under color of state law, intentionally and willfully subjected Plaintiff to *inter alia* false arrest and excessive force.
3. Plaintiff seeks monetary damages (special, compensatory and punitive) against Defendants as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff Ms. Arrington is a United State citizen and at all time here relevant resided at 1270 Redfern Avenue, Apartment 3F, Far Rockaway, NY 11691.
5. New York City is a municipal corporation organized under the laws of the State of New York.
6. Police Officer Alex Hojnowski ("PO Hojnowski") and Police Officer David Hovestadt ("PO Hovestadt") at all times here relevant were members of the NYPD, and are sued in their individual and professional capacities.
7. At all times mentioned, Defendants were acting under color of state law, under color of the statues, ordinances, regulations, policies, customs and usages of the City of New York.

FACTUAL ALLEGATIONS

8. At the time of the incident described herein, Ms. Arrington was 35 years old and was working with a flight catering company based at JFK airport.
9. On or about August 2, 2016, Ms. Arrington was spending the evening with her boyfriend, Mr. Daniels.
10. In the early hours of August 3, 2016, Ms. Arrington and Mr. Daniels got into a verbal argument.
11. Ms. Arrington and Mr. Daniels were at the intersection between 153rd Street and 89th Avenue in Jamaica, Queens.
12. PO Hojnowski and PO Hovestadt approached Ms. Arrington and Mr. Daniels and asked them to move into the nearby park.

13. Mr. Arrington responded to the officers, in sum and substance, that they were on a public sidewalk and did not want to move into the park.
14. Ms. Arrington continued to talk to Mr. Daniels.
15. Ms. Arrington was holding onto the railing on the sidewalk.
16. PO Hojnowski and PO Hovestadt responded by grabbing and handcuffing Ms. Arrington's left wrist.
17. The handcuff immediately caused pain to Ms. Arrington's left wrist.
18. One of the officers then pulled on the handcuff, causing Ms. Arrington excruciating pain.
19. One of the officers then handcuffed Ms. Arrington's right wrist.
20. The handcuff on the right wrist trapped one of the fingers on Ms. Arrington's hand, again causing her severe pain.
21. Ms. Arrington pleaded with the officers to loosen the cuffs, but the officers refused to do so.
22. One of the officers then pulled the chain on the handcuffs, once more causing Ms. Arrington to suffer excruciating pain.
23. Ms. Arrington was then put in the back of an ambulance.
24. PO Hojnowski and PO Hovestadt forced Ms. Arrington to lie on her back with her hands underneath her.
25. Mr. Arrington told the officers that it was extremely painful, but the officers ignored Ms. Arrington.
26. Ms. Arrington was taken to Queens Hospital Center, where the officers finally removed the handcuffs.

27. Ms. Arrington was given painkillers and a sling for her wrists.
28. Ms. Arrington was discharged at approximately 8:00 am.
29. Ms. Arrington is upset by the events of August 2016 and continues to suffer pain and numbness in her wrists and fingers as a result of this incident.
30. Ms. Arrington is wary when she sees police officers in public.
31. Ms. Arrington feels frustration, anger, embarrassment, humiliation, loss of liberty, and financial loss as a result of the incident.

FIRST CAUSE OF ACTION

(42 USC 1983 – False Arrest)

32. Plaintiff repeats and re-alleges each of the preceding allegations of this Complaint as if fully set forth herein.
33. Defendants have deprived Plaintiff of her civil, constitutional and statutory rights under color of law and are liable to Plaintiff under 42 USC 1983.
34. Defendants have deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Plaintiff was falsely arrested by Defendants.
35. Defendants confined Plaintiff.
36. Plaintiff was aware of, and did not consent to, her confinement.
37. The confinement was not privileged.
38. Plaintiff has been damaged a result of Defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

SECOND CAUSE OF ACTION

(42 USC 1983 – Excessive Force)

39. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.
40. Defendants have deprived Plaintiff of her civil, constitutional and statutory rights under color of law and are liable to Plaintiff under 42 USC 1983.
41. Defendants have deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Defendants used excessive and unreasonable force in effecting the arrest of Plaintiff.
42. Plaintiff has been damaged as a result of Defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

JURY DEMAND

43. Plaintiff demands a trial by jury.

WHEREFORE, Plaintiff respectfully requests that the Court enter a Judgment against Defendants together with costs and disbursements as follows:

In favor of Plaintiff in an amount to be determined by a jury, but at least equal or exceeding the jurisdictional limit of this Court for each of Plaintiff's causes of action;

Awarding Plaintiff punitive damages in an amount to be determined by a jury;

Awarding Plaintiff reasonable attorneys' fees, costs and disbursements of this action;

And such other and further relief as the Court deems just and proper.

Dated: New York, New York
April 28, 2017

/s/

Malcolm Anderson

PetersonDelleCave LLP
Attorney for Plaintiff
233 Broadway, Suite 1800
New York, NY 10279
(212) 240-9075

ATTORNEY'S VERIFICATION

Malcolm Anderson, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **PetersonDelleCave LLP**, attorneys for Plaintiff herein. I have read the annexed

Summons and Complaint

and know the content thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside presently in New York County wherein I maintain my offices.

Dated: New York, New York
April 28, 2017

_____/s/_____
Malcolm Anderson

Index No.:
SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

ELIZABETH ARRINGTON,

PLAINTIFF,

-AGAINST-

NEW YORK CITY, POLICE OFFICER ALEX HOJNOWSKI AND POLICE OFFICER
DAVID HOVESTADT, individually, and in their capacity as members of the New York City
Police Department,

DEFENDANTS.

SUMMONS AND COMPLAINT

**PETERSONDELLECAVE LLP
233 BROADWAY, SUITE 1800
NEW YORK, NY 10279
(212) 240- 9075**

TO: NEW YORK SUPREME COURT, QUEENS COUNTY

Date: April 28, 2017

Yours sincerely,

Malcolm Anderson.